

Amendment No. 1 to HB0403

Farmer
Signature of Sponsor

AMEND Senate Bill No. 482

House Bill No. 403*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 39-13-605(a), is amended by deleting the subsection and substituting:

(1) It is an offense for a person to knowingly photograph, or cause to be photographed, an individual, when the individual has a reasonable expectation of privacy, without the prior effective consent of the individual, or in the case of a minor, without the prior effective consent of the minor's parent or legal guardian, if the photograph:

(A)

(i) Would offend or embarrass an ordinary person if the person appeared in the photograph; and

(ii) Was taken for the purpose of sexual arousal or gratification of the defendant; or

(B) Includes the unclothed intimate area of the individual or the individual engaged in sexual activity, as defined in § 39-17-1002, and the person knew that the photograph would include such content.

(2) It is an offense for a person to knowingly photograph, or cause to be photographed, an individual, when the individual has a reasonable expectation of privacy, without the prior effective consent of the individual, or in the case of a minor, without the prior effective consent of the minor's parent or legal guardian, if the photograph:

(A) Includes the unclothed intimate area of the individual and would be considered offensive or embarrassing by the individual;

(B) Was taken for the purpose of offending, intimidating, embarrassing, ridiculing, or harassing the victim; and

(C) Was disseminated by the defendant, the defendant threatened to disseminate the photograph, or the defendant permitted the dissemination of the photograph to another person.

(3) It is an offense for a person to knowingly photograph, or cause to be photographed, an individual without the prior effective consent of the individual, or in the case of a minor, without the prior effective consent of the minor's parent or legal guardian, if the photograph:

(A) Is focused on the intimate area of the individual and would be considered offensive or embarrassing by the individual; and

(B) Was taken for the purpose of sexual arousal or gratification of the defendant.

SECTION 2. Tennessee Code Annotated, Section 39-13-605(b), is amended by redesignating the subsection as subdivision (b)(1) and adding the following new subdivision:

(2) As used in this section, an individual has a reasonable expectation of privacy, regardless of the location where a photograph is taken, if:

(A) The photograph is taken in a manner that would offend or embarrass a reasonable person; and

(B) The photograph depicts areas of the individual's body, clothed or unclothed, that would not be visible to ordinary observation but for the offensive or embarrassing manner of photography.

SECTION 3. Tennessee Code Annotated, Section 39-13-605(b)(1), is amended by deleting "videotape" and substituting "video or digital recording".

SECTION 4. Tennessee Code Annotated, Section 39-13-605, is amended by deleting subsection (d) and substituting:

(1) A violation of subdivision (a)(1) or (a)(3) is a Class D felony.

(2) A first violation of subdivision (a)(2) is a Class B misdemeanor. A second or subsequent violation of subdivision (a)(2) is a Class A misdemeanor.

SECTION 5. Tennessee Code Annotated, Section 40-35-313(a)(1)(B)(i)(c), is amended by deleting "or § 39-15-512" and substituting "§ 39-15-512, or § 39-13-605(a)(1) or (a)(3)".

SECTION 6. This act takes effect July 1, 2025, the public welfare requiring it.